



LEGISLATIVE APPROPRIATIONS REQUEST For Fiscal Years 2028 and 2029

**Submitted to the
Governor's Office of Budget, Planning and Policy
and the Legislative Budget Board**

by
Ninth Court of Appeals
Beaumont

Chief Justice W. Scott Golemon
Justice Leanne Johnson Justice Jay Wright Justice Kent Chambers

Submitted August 14, 2026

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Administrator's Statement

8/14/2026 10:37:45AM

90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

229 Ninth Court of Appeals District, Beaumont

The core function of Texas' intermediate appellate courts is to process, review, and decide by written opinion every appeal that is filed with them from trial courts, in civil and criminal cases, across numerous counties. These appeals include every substantive area of civil and criminal law—except for death penalty cases—and many of them must be decided on an expedited basis as mandated by the Legislature and the rules of appellate procedure.

The courts of appeals must also resolve a large number of original proceedings each fiscal year seeking extraordinary relief—such as a writ of habeas corpus, mandamus, prohibition, injunction, or quo warranto. Original proceedings, which are often filed during the pendency of litigation, commonly have voluminous records and must also be decided on an expedited basis. And many of them include a request for emergency temporary relief which must be addressed immediately.

Against this backdrop, Texas has gained more residents than any other state during the 21st century. Since 2000, the population of Texas has increased by more than 52%. More than 31 million people now live in Texas. And the vast majority are adults who look to the judiciary for resolution of their disputes as guaranteed by our Constitution. The Legislature has responded to this big increase in population by creating nearly 200 new trial courts across Texas. And the Bench and the Bar have taken important steps to increase access to justice for all Texans.

NOTE: The Ninth Court of Appeals in Beaumont in particular feels the impact of this population growth. However, in Montgomery County (one of the Ninth Court of Appeals' ten counties), the population in 2000 was 293,768, compared to approximately 811,205 in 2026, which is an increase of about 176.1%. The vast majority of cases filed in the Ninth Court of Appeals are from Montgomery County, which exceeds the combined filings from the other nine counties in the district.

The increase in population results in an increase in filings in the Ninth Court of Appeals. In 2004, the Legislature added a fourth justice to the Ninth Court of Appeals. Since 2000, there have been approximately ten more courts created and located in Montgomery County. However, with the continued increase in population and in the number of added courts, the Texas Legislature has not added sufficient staff to the Ninth Court of Appeals for the court to efficiently dispose of the additional appeals. In addition, as of July 2026, the Montgomery County Commissioners Court has approved the creation of four additional courts, even though the Montgomery County Board of Judges determined nine additional courts were actually needed (some judges are doing the work of three). The increase in the number of courts has and will result in an increase in filings in the Ninth Court of Appeals.

New case filings in the courts of appeals began to return to their pre-COVID levels in fiscal year 2022. During the next three fiscal years (FY '23, FY '24, and FY '25), new case filings in the courts of appeals increased each fiscal year by between 4% to 8%. This is consistent with the increase in new cases experienced by the federal courts of appeals from 2022 to 2025 at nearly 4.4%.

This all changed for Texas' courts of appeals in fiscal year 2026. New case filings are increasing in FY '26 from FY '25 by 20%. And they are increasing by about 30% from FY '24—which was the last fiscal year before the 89th Legislative Session. See Table 1.

Instead of new case filings increasing about 30% from FY '24 referenced in Table 1, by comparison, new case filings for the Ninth Court of Appeals are increasing 39% in FY '26 from FY '24. This 39% or third highest increase was only exceeded by the Second Court of Appeals in Fort Worth at 41%, and by the Fourteenth Court of Appeals in Houston at 44%. Also, this 39% increase is substantially higher when compared to the other 3 and 4 justice courts, which experienced increases between 1% to 28%.

When equalization transfers are taken into account, every court of appeals in Texas (except the 15th court which has different jurisdictional requirements) is experiencing these large increases in new case filings—which are anticipated to continue for the foreseeable future. See Table 2.

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Two important components of this big increase in new case filings are original proceedings and pro se appeals. Together, they constitute 54% of the new cases filed in the courts of appeals in FY '26.

Original proceedings are increasing in FY '26 from FY '25 by 49%. And they are increasing in FY '26 from FY '24 by 83%. See Table 3.

Meanwhile, pro se appeals are increasing in FY '26 from FY '25 by 36%. And they are increasing in FY '26 from FY '24 by 68%. See Table 4.

The Ninth Court of Appeals is experiencing a dramatic increase in the number of original proceedings. See Table 5. This drastic growth in 2026 can be attributed to the use of AI by self-represented relators. In the past, many of who are now self-represented relators would have paid a lawyer to file the petition for them.

Yet, in the face of this significant growth, the number of staff attorneys (and other staff) at the courts of appeals who assist the justices with their workload has remained largely the same.

A key factor in handling the increasing workload without additional justices is the employment of highly skilled and trained staff attorneys (and other staff). They maximize the productivity of justices by processing complex cases, researching and drafting preliminary drafts of orders and opinions, disposing of voluminous motions, and managing accelerated and emergency matters.

The large population growth across the State and the magnitude of new case filings, in concert with an ever-increasing number of case types requiring expedited review, make it clear that the courts of appeals require additional staff attorneys, and/or other staff, to manage their growing dockets and to efficiently provide the timely, high-quality justice to which all citizens of Texas are entitled.

In that regard, the courts of appeals, collectively, began in the 79th and 80th Legislative Sessions to work toward a zero-based budget model referred to as "Similar Funding for Same-Sized Courts." This model quantified the funding required to meet the personnel and operational needs of the courts, thus enabling the courts to accomplish their core function and meet their performance measures. The Similar Funding for Same-Sized Courts initiative was fully funded for the first time in 2015, and the courts had been operating under the same zero-based budget model and funding levels until the 88th Legislative Session when the Legislature increased the budgets for the intermediate appellate courts.

Based upon a template of same-size courts, the courts of appeals are now asking the Legislature for additional staff attorneys, and/or other staff, to match the nearly 30% increase in new case filings since FY '24—subject to the particularized request of each court of appeals. See Table 6.

Without a sufficient number of qualified staff attorneys, and/or other staff, the courts of appeals are largely unable to handle the increasing volume of new case filings each fiscal year and comply with Legislative mandates to give accelerated and preferential treatment to certain appeals (such as parental-termination and juvenile-certification appeals under the Family Code, mental-health appeals under the Health and Safety Code, and interlocutory appeals under the Civil Practice and Remedies Code) and also comply with the legislatively mandated Clearance Rate requirement.

The courts of appeals are appreciative of the increased funding for existing staff attorneys received last session. It is important and enables the courts of appeals to hire and retain qualified individuals for their existing staff attorney positions, and other staff. The courts of appeals are now faced with the need to increase the number of their staff attorney positions, and/or other staff, in order to keep pace with the growth of Texas and the large increase in new case filings. But they currently lack the funding to do so.

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And now the courts of appeals have been instructed to reduce their base appropriation request for the 2028-29 biennium by 3%. Unlike other state agencies, 96.5% of each court of appeals' budget, on average, is dedicated to salaries and benefits (Salaries and benefits account for 98% of the budget of the Ninth Court of Appeals.) This budget reduction would thus result in a disproportionate and highly negative impact on the courts of appeals. The only way to absorb such a budget reduction is to cut court staff. This is counter-intuitive and unsustainable in light of the substantial increase in new case filings. Additionally, there is virtually no benefit to the State from a 3% budget cut on the courts of appeals. Indeed, funding for all of the courts of appeals comprises less than 0.04% of the State budget as a whole. And a 3% budget cut on the courts of appeals would approximately yield only a 0.002% reduction in the entire State budget.

Mindful of that, and of the critical role that the courts of appeals perform for all Texans, additional funding for additional staff attorneys, and/or other staff, as specifically requested by each court of appeals, is now necessary for the courts of appeals to ensure the efficient and timely administration of justice going forward.

EXCEPTIONAL ITEM #1: RESTORE THE 3% BUDGET CUT.

To address the highly negative and disproportionate impact of the required 3% reduction on the courts' funding, especially in light of the substantial increase in new case filings in Fiscal Year 2026, the courts of appeals respectfully submit Exceptional Item #1 requesting the restoration of the 3% budget reduction so that their baseline funding will be the Fiscal Year 2027 budgeted levels. The Ninth Court of Appeals therefore respectfully requests a restoration to General Revenue funding in the amount of \$181,593.

EXCEPTIONAL ITEM #2: ADDITIONAL FULL TIME STAFF ATTORNEYS [AND/OR LAW CLERKS AND/OR ADMINISTRATIVE CLERKS] DUE TO THE SUBSTANTIAL INCREASE IN NEW CASE FILINGS.

Due to the substantial increase in new case filings that the courts of appeals are experiencing in FY '26, and which are expected to continue for the foreseeable future, and based on the template of same-size courts above, the Ninth Court of Appeals respectfully submits its Exceptional Item # 2 in which it requests funding for four additional full time staff attorneys.

These additional staff attorneys are necessary because the Ninth Court of Appeals has experienced a 20% increase in new case filings from FY '25 to FY '26. And a 39% increase from FY '24 to FY '26. These increases are beyond the current capacity of the Ninth Court of Appeals to handle and comply with the Legislative mandates to give accelerated and preferential treatment to certain appeals (such as parental-termination and juvenile-certification appeals under the Family Code, mental-health appeals under the Health and Safety Code, and interlocutory appeals under the Civil Practice and Remedies Code) and also comply with the legislatively mandated Clearance Rate requirement.

The total anticipated expense for these requested FTEs in Biennium 2028-29 for the Ninth Court of Appeals is broken down as follows:

Salaries and wages: \$568,000

Other Personnel Costs: \$960

Consumables: \$2000

Other Operating Expenses: \$99,501

EXCEPTIONAL ITEM #3: RECRUITMENT AND RETENTION OF JUDICIAL-BRANCH STAFF

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Recruiting and retaining excellent judicial-branch staff is essential to the fair and efficient administration of justice in Texas. The rising cost of living combined with the draw of more lucrative employment at other government agencies and the private sector continue to create staffing challenges for the courts. A 3% annual increase in staff pay throughout the Article IV courts and agencies would help maintain the judicial branch's position in the competitive market for talented, qualified, and experienced lawyers and staff. In conjunction with the rest of the judicial branch, the Ninth Court of Appeals requests a 3% increase in staff salaries in Fiscal Year 2028 and an additional 3% increase in Fiscal Year 2029.

SPECIAL PROVISIONS/RIDER EXCEPTION REQUESTS:

The courts of appeals also request the following with regard to the SPECIAL PROVISIONS – JUDICIARY found in Article IV (beginning at p. IV-42 of the General Appropriations Act for the 2026-27 Biennium) concerning across-the-board riders:

1. Retain Special Provisions – Judiciary, Sec. 3, Appellate Court Exemptions pertaining to the following Article IX riders: Section 6.10, Limitations on State Employment Levels, Section 6.13, Performance Standards, Section 14.03, Transfers – Capital Budget, and Section 3.04, Scheduled Exempt Positions.
2. Retain Special Provisions – Judiciary, Sec. 5, Interagency Contracts for Assigned Judges for Appellate Courts
3. Retain Special Provisions – Judiciary, Sec. 6, Appellate Court Transfer Authority

Historically, the Legislature has granted the courts' exemption from certain limitations in the General Appropriations Act. The Legislature has also granted the courts the authority to carry over unexpended budget balances between years within the biennium. The flexibility afforded by these measures enhances the courts' management ability, and we seek continuation of these budget features.

4. Add Special Provision – Traveling Justices and Judges and Mileage Reimbursement

Appellate court justices and judges that travel for official state business in a personal vehicle should be exempt from the requirement to complete a comparison worksheet showing that mileage reimbursement for travel in a personal vehicle is more cost-effective than the use of a rental car (as is currently the case for children's court and business court state who travel regularly for official state business). (See Article IV Appropriation for OCA, Texas Judicial Council – Item No. 7 entitled "Mileage Reimbursement for Children's Courts and Business Court Staff").

ADDITIONAL STATEMENTS OF SUPPORT:

In order for the courts of appeals to function efficiently, it is vital that the Office of Court Administration (OCA) be adequately funded. The courts of appeals rely on many of the services provided by OCA and, therefore, the courts of appeals fully support the exceptional items the OCA requests as part of its funding. More specifically, the courts of appeals strongly support the request for funding related to the acquisition of a new appellate case management system to replace the current system known as TAMES as well as a case-level data system.

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If the Legislature appropriates a cost-of-living increase to state employees, the courts of appeals request that all court employees be included in any such cost-of-living increase.

Finally, the courts of appeals wish to express appreciation to and support for the Judicial Compensation Commission and the Legislature's efforts to strengthen the justice system by increasing judicial salaries to attract and retain a strong judiciary. The courts of appeals request the Legislature implement the Judicial Compensation Commission's recommendations for an increase in judicial compensation.

Note: on Appropriated Receipts – At the direction of the LBB & Governor's Office, the Ninth Court of Appeals has included appropriated receipts in the amount of \$4,000 reflecting reimbursement for copies of court documents. These amounts are merely an offset for additional expenses incurred by the Court and do not constitute additional funds available for general expenditures for the Court. The amount can vary significantly from year to year.

TABLE 1

New Cases Filed by Fiscal Year							
	FY 24	FY 25	FY 26 (Projected)	Difference from FY 25 to FY26	% Difference	Difference from FY 24 to FY26	% Difference
1st/Houston	952	1,042	1,293	251	24%	341	36%
2nd/Fort Worth	1,000	1,133	1,411	278	25%	411	41%
3rd/Austin	922	940	1,193	253	27%	271	29%
4th/San Antonio	861	864	951	87	10%	90	10%
5th/Dallas	1,451	1,629	1,896	267	16%	445	31%
6th/Texarkana	253	269	275	6	2%	22	9%
7th/Amarillo	308	287	311	24	8%	3	1%
8th/El Paso	337	221	283	62	28%	-54	-16%
9th/Beaumont	408	473	568	95	20%	160	39%
10th/Waco	444	443	567	124	28%	123	28%
11th/Eastland	300	290	358	68	23%	58	19%
12th/Tyler	320	290	351	61	21%	31	10%
13th/Corpus Christi	509	552	698	146	26%	189	37%
14th/Houston	923	1,073	1,328	255	24%	405	44%
15th/Statewide	N/A	135	120	-15	-11%	N/A	N/A
Total FYTD	8,988	9,641	11,603	1,962	20%	2,615	29%

Unusual, one-month spike occurred

TABLE 2

New Cases Filed by Fiscal Year - After Transfers							
	FY 24	FY 25	FY 26 (Projected)	Difference from FY 25 to FY26	% Difference	Difference from FY 24 to FY26	% Difference
1st/Houston	981	1,060	1,305	245	23%	324	33%
2nd/Fort Worth	863	921	1,053	132	14%	190	22%
3rd/Austin	732	834	879	45	5%	147	20%
4th/San Antonio	644	782	931	149	19%	287	44%
5th/Dallas	1,490	1,614	1,817	203	13%	327	22%
6th/Texarkana	308	330	380	50	15%	72	23%
7th/Amarillo	431	399	545	146	37%	114	26%
8th/El Paso	453	319	428	109	34%	-25	-6%
9th/Beaumont	417	472	531	59	13%	114	27%
10th/Waco	322	374	461	87	23%	139	43%
11th/Eastland	325	330	411	81	25%	86	26%
12th/Tyler	363	299	427	128	43%	64	18%
13th/Corpus Christi	626	665	875	210	32%	249	40%
14th/Houston	950	1,079	1,315	236	22%	365	38%
15th/Statewide	N/A	254	244	-10	-4%	N/A	N/A
Total FYTD	8,905	9,732	11,602	1,870	19%	2,697	30%

Unusual, one-month spike occurred

TABLE 3

Original Proceedings										
	Court	22	23	24	25	FY 26 (projected)	Difference from FY 25 to FY26 % Difference		Difference from FY 24 to FY26 % Difference	
	1	221	176	176	186	252	66	36%	76	43%
	2	80	55	97	120	200	80	66%	103	106%
	3	144	113	122	159	261	102	64%	139	114%
	4	112	112	115	141	199	58	41%	84	73%
	5	214	228	225	297	465	168	56%	240	106%
	6	31	29	19	38	49	11	28%	30	157%
	7	59	38	40	25	23	-2	-7%	-17	-42%
	8	29	26	29	49	87	38	78%	58	201%
	9	46	56	51	49	82	33	66%	31	60%
	10	86	81	58	58	115	57	99%	57	99%
	11	48	45	30	34	39	5	15%	9	30%
	12	39	58	36	45	58	13	29%	22	61%
	13	90	97	90	115	190	75	65%	100	111%
	14	219	178	159	187	239	52	28%	80	50%
	15	N/A	N/A	N/A	32	26	-6	-18%	N/A	N/A
Total original proceedings filed		1,418	1,292	1,247	1,535	2,286	751	49%	1,039	83%
New cases filed		8,034	8,668	8,988	9,641	11,603				
Orig proceedings as % of new cases filed		18%	15%	14%	16%	20%				

TABLE 4

New Cases Filed by Pro Se Litigants										
Court	22	23	24	25	FY 26 (projected)	Difference from FY 25		Difference from FY 24 to		
						to FY26	% Difference	FY26	% Difference	
1	242	228	226	289	357	68	24%	131	58%	
2	198	221	267	334	439	105	31%	172	64%	
3	205	202	229	320	447	127	40%	218	95%	
4	144	151	141	201	265	64	32%	124	88%	
5	373	420	527	600	728	128	21%	201	38%	
6	42	50	39	67	95	28	41%	56	142%	
7	122	119	90	108	124	16	15%	34	37%	
8	61	66	70	62	158	96	154%	88	125%	
9	73	99	86	97	177	80	83%	91	106%	
10	144	120	118	125	191	66	53%	73	62%	
11	110	103	93	103	95	-9	-8%	2	2%	
12	77	56	77	72	92	20	28%	15	20%	
13	136	148	148	167	254	87	52%	106	72%	
14	252	246	236	321	429	108	34%	193	82%	
15	N/A	N/A	N/A	33	89	56	169%	N/A	N/A	
Total cases filed by pro se litigants	2,179	2,229	2,347	2,899	3,939	1,040	36%	1,592	68%	
New cases filed	8,034	8,668	8,988	9,641	11,603					
% of new cases filed by pro se litigants	27%	26%	26%	30%	34%					

TABLE 5

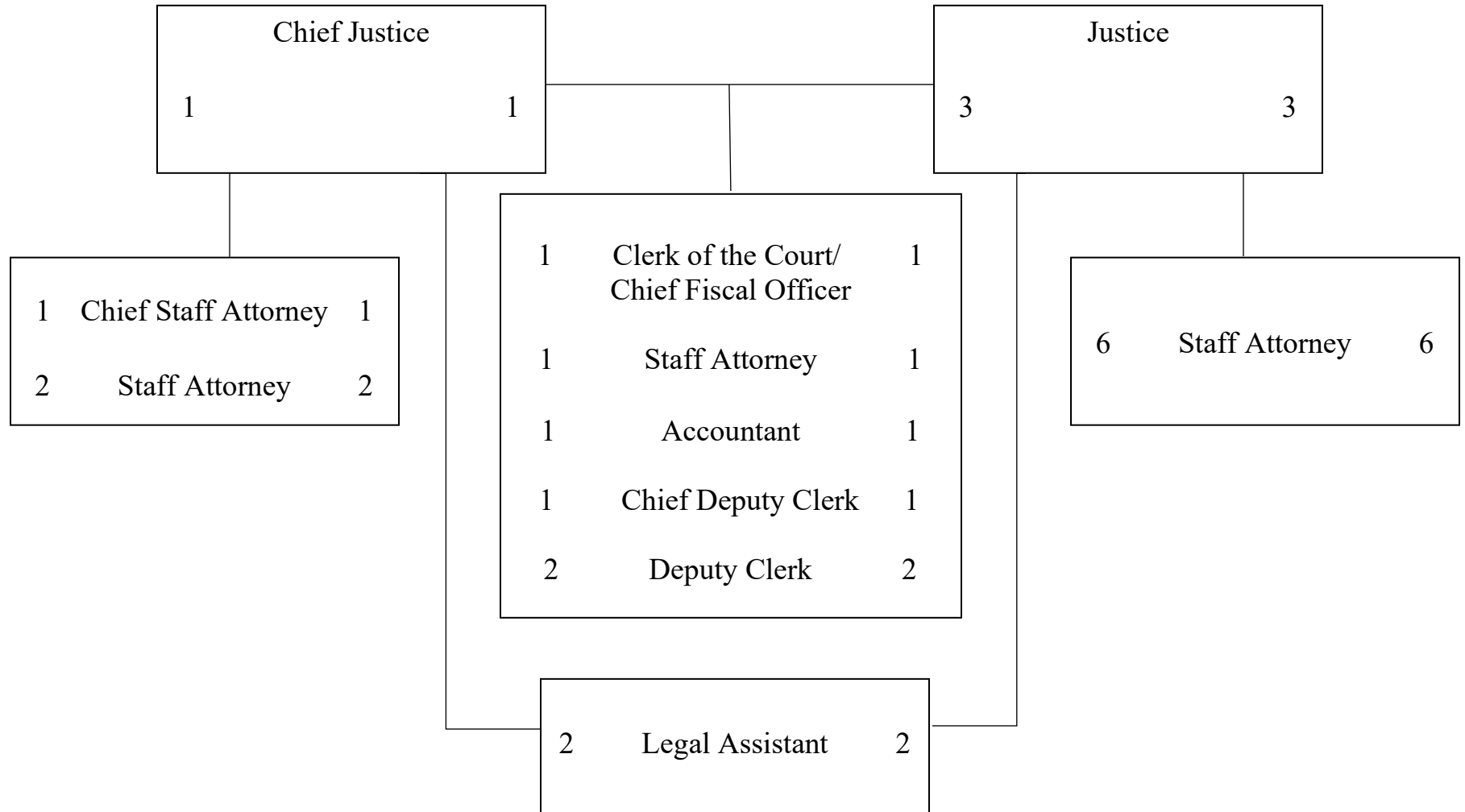
Fiscal year	Total petitions	Total response requests	Total self-represented relators
2026 (11 months)	84	27	52
2025	50	17	27
2024	49	19	20
2023	56	28	23
2022	44	25	16

TABLE 6

Court Size	Number of New Staff Attorneys and/or Staff
13 Justices	9
9 Justices	8
6-7 Justices	6
3-4 Justices	4

Ninth Court of Appeals Organizational Chart

2028-2029





CERTIFICATE

Agency Name Ninth Court of Appeals

This is to certify that the information contained in the agency Legislative Appropriations Request filed with the Legislative Budget Board (LBB) and the Office of the Governor, Budget and Policy Division, is accurate to the best of my knowledge and that the electronic submission to the LBB via the Automated Budget and Evaluation System of Texas (ABEST) and the PDF file submitted via the LBB Document Submission application are identical.

Additionally, should it become likely at any time that unexpended balances will accrue for any account, the LBB and the Office of the Governor will be notified in writing in accordance with Senate Bill 1, Article IX, Section 7.01, Eighty-ninth Legislature, Regular Session, 2025.

Chief Executive Officer or Presiding Judge

W. Scott Golemon
Signature

W. Scott Golemon

Printed Name

Chief Justice

Title

August 14, 2026

Date

Board or Commission Chair

Signature

Printed Name

Title

Date

Chief Financial Officer

Carly Latiolais
Signature

Carly Latiolais

Printed Name

Clerk of the Court

Title

August 14, 2026

Date

Budget Overview - Biennial Amounts
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

229 Ninth Court of Appeals District, Beaumont
Appropriation Years: 2028-29

	GENERAL REVENUE FUNDS		GR DEDICATED		FEDERAL FUNDS		OTHER FUNDS		ALL FUNDS		EXCEPTIONAL ITEM FUNDS
	2026-27	2028-29	2026-27	2028-29	2026-27	2028-29	2026-27	2028-29	2026-27	2028-29	2028-29
Goal: 1. Appellate Court Operations											
1.1.1. Appellate Court Operations	4,510,316	4,194,124					16,000	8,000	4,526,316	4,202,124	1,622,569
1.1.2. Appellate Justice Salaries	1,542,776	1,542,776					245,200	245,200	1,787,976	1,787,976	
Total, Goal	6,053,092	5,736,900					261,200	253,200	6,314,292	5,990,100	1,622,569
Total, Agency	6,053,092	5,736,900					261,200	253,200	6,314,292	5,990,100	1,622,569
Total FTEs									20.0	19.0	24.0

2.A. Summary of Base Request by Strategy

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90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

229 Ninth Court of Appeals District, Beaumont

Goal / Objective / STRATEGY	Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
1 Appellate Court Operations					
1 Appellate Court Operations					
1 APPELLATE COURT OPERATIONS	2,120,678	1,911,502	2,614,814	2,101,062	2,101,062
2 APPELLATE JUSTICE SALARIES	659,733	893,988	893,988	893,988	893,988
TOTAL, GOAL 1	\$2,780,411	\$2,805,490	\$3,508,802	\$2,995,050	\$2,995,050
TOTAL, AGENCY STRATEGY REQUEST	\$2,780,411	\$2,805,490	\$3,508,802	\$2,995,050	\$2,995,050
TOTAL, AGENCY RIDER APPROPRIATIONS REQUEST*				\$0	\$0
GRAND TOTAL, AGENCY REQUEST	\$2,780,411	\$2,805,490	\$3,508,802	\$2,995,050	\$2,995,050

2.A. Summary of Base Request by Strategy

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90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

229 Ninth Court of Appeals District, Beaumont

Goal / Objective / STRATEGY	Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>METHOD OF FINANCING:</u>					
General Revenue Funds:					
1 General Revenue Fund	2,649,811	2,674,890	3,378,202	2,868,450	2,868,450
SUBTOTAL	\$2,649,811	\$2,674,890	\$3,378,202	\$2,868,450	\$2,868,450
Other Funds:					
573 Judicial Fund	122,600	122,600	122,600	122,600	122,600
666 Appropriated Receipts	8,000	8,000	8,000	4,000	4,000
SUBTOTAL	\$130,600	\$130,600	\$130,600	\$126,600	\$126,600
TOTAL, METHOD OF FINANCING	\$2,780,411	\$2,805,490	\$3,508,802	\$2,995,050	\$2,995,050

*Rider appropriations for the historical years are included in the strategy amounts.

2.B. Summary of Base Request by Method of Finance

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90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code:	229	Agency name:	Ninth Court of Appeals District, Beaumont			
METHOD OF FINANCING		Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>GENERAL REVENUE</u>						
<u>1</u>	General Revenue Fund					
	<i>REGULAR APPROPRIATIONS</i>					
	Regular Appropriations from MOF Table (2026-27 GAA)					
		\$0	\$2,774,591	\$2,774,591	\$0	\$0
	Comments: General revenue FY 26-27					
	Regular Appropriations from MOF Table (2024-25 GAA)					
		\$2,506,633	\$0	\$0	\$0	\$0
	Comments: General revenue FY25					
	Regular Appropriations from MOF Table (2028-29 GAA)					
		\$0	\$0	\$0	\$2,868,450	\$2,868,450
	<i>RIDER APPROPRIATION</i>					
	Art IX Sec. 18.83, Contingency for SB 293					
		\$0	\$176,525	\$176,525	\$0	\$0
	Comments: Judicial Salary increase					
	<i>TRANSFERS</i>					

2.B. Summary of Base Request by Method of Finance

8/14/2026 10:37:49AM

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Automated Budget and Evaluation System of Texas (ABEST)

Agency code:	229	Agency name:	Ninth Court of Appeals District, Beaumont			
METHOD OF FINANCING	Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029	
<u>GENERAL REVENUE</u>						
Art IX, Sec 17.15, Appropriation for a Salary Increase for General State Employees (2026-27 GAA)	\$0	\$80,000	\$80,000	\$0	\$0	
Comments: Funds requested for attorney additional 6% Salary increase FY26-FY27						
<i>LAPSED APPROPRIATIONS</i>						
Regular Appropriations from MOF Table (2024-25 GAA)	\$(43,450)	\$0	\$0	\$0	\$0	
Comments: Return unused Judges Salaries 13004 for FY25						
Art IX, Sec 17.15, Appropriation for a Salary Increase for General State Employees (2026-27 GAA)	\$0	\$(4,570)	\$(4,570)	\$0	\$0	
Comments: Estimated return of unused funds requested for attorneys 6% salaries FY26-FY27						
Regular Appropriations from MOF Table (2024-25 GAA)	\$(12,478)	\$0	\$0	\$0	\$0	
Comments: Return unused 13001 funds for FY25						
<i>UNEXPENDED BALANCES AUTHORITY</i>						
Art, IV, Special Provisions, Sec 9, Unexpended Balance Authority (2026-2027) GAA						

2.B. Summary of Base Request by Method of Finance

8/14/2026 10:37:49AM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code: 229		Agency name: Ninth Court of Appeals District, Beaumont				
METHOD OF FINANCING		Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>GENERAL REVENUE</u>		\$0	\$(324,630)	\$0	\$0	\$0
Comments: Estimated UB unused funds 13001 FY26 to FY27						
Art, IV, Special Provisions, Sec 9, Unexpended Balance Authority (2026-2027) GAA		\$0	\$0	\$324,630	\$0	\$0
Comments: Estimated UB unused funds 13001 FY26 to FY27						
Art, IV, Special Provisions, Sec 9, Unexpended Balance Authority (2026-2027) GAA		\$0	\$(27,026)	\$0	\$0	\$0
Comments: Estimated UB Judges Salaries FY26 to FY27						
Art, IV, Special Provisions, Sec 9, Unexpended Balance Authority (2026-2027) GAA		\$0	\$0	\$27,026	\$0	\$0
Comments: Estimated UB Judges Salaries FY26 to FY27						
Art, IV, Special Provisions, Sec 9, Unexpended Balance Authority (2026-2027) GAA		\$199,106	\$0	\$0	\$0	\$0
TOTAL,	General Revenue Fund	\$2,649,811	\$2,674,890	\$3,378,202	\$2,868,450	\$2,868,450

2.B. Summary of Base Request by Method of Finance

8/14/2026 10:37:49AM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code: 229		Agency name: Ninth Court of Appeals District, Beaumont				
METHOD OF FINANCING		Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
TOTAL, ALL GENERAL REVENUE		\$2,649,811	\$2,674,890	\$3,378,202	\$2,868,450	\$2,868,450
<u>OTHER FUNDS</u>						
<u>573</u> Judicial Fund No. 573						
<i>REGULAR APPROPRIATIONS</i>						
Regular Appropriations from MOF Table (2024-25 GAA)						
		\$122,600	\$0	\$0	\$0	\$0
Regular Appropriations from MOF Table (2026-27 GAA)						
		\$0	\$122,600	\$122,600	\$0	\$0
Regular Appropriations from MOF Table (2028-29)						
		\$0	\$0	\$0	\$122,600	\$122,600
TOTAL, Judicial Fund No. 573		\$122,600	\$122,600	\$122,600	\$122,600	\$122,600
<u>666</u> Appropriated Receipts						
<i>REGULAR APPROPRIATIONS</i>						
Regular Appropriations from MOF Table (2024-25 GAA)						
		\$8,000	\$0	\$0	\$0	\$0

2.B. Summary of Base Request by Method of Finance

8/14/2026 10:37:49AM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code: 229		Agency name: Ninth Court of Appeals District, Beaumont				
METHOD OF FINANCING		Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
<u>OTHER FUNDS</u>						
Appropriated Receipts		\$0	\$8,000	\$8,000	\$0	\$0
Regular Appropriations from MOF Table (2028-29 GAA)		\$0	\$0	\$0	\$4,000	\$4,000
<i>RIDER APPROPRIATION</i>						
Art IX, Sec 8.02, Reimbursements and Payments (2024-25 GAA)		\$0	\$0	\$0	\$0	\$0
TOTAL,	Appropriated Receipts	\$8,000	\$8,000	\$8,000	\$4,000	\$4,000
TOTAL, ALL	OTHER FUNDS	\$130,600	\$130,600	\$130,600	\$126,600	\$126,600
GRAND TOTAL		\$2,780,411	\$2,805,490	\$3,508,802	\$2,995,050	\$2,995,050

2.B. Summary of Base Request by Method of Finance

8/14/2026 10:37:49AM

90th Regular Session, Agency Submission, Version 1

Automated Budget and Evaluation System of Texas (ABEST)

Agency code: 229	Agency name: Ninth Court of Appeals District, Beaumont				
METHOD OF FINANCING	Exp 2025	Est 2026	Bud 2027	Req 2028	Req 2029
FULL-TIME-EQUIVALENT POSITIONS					
REGULAR APPROPRIATIONS					
Regular Appropriations from MOF Table (2026-27 GAA)	0.0	20.0	20.0	0.0	0.0
Regular Appropriations from MOF Table (2024-25 GAA)	19.0	0.0	0.0	0.0	0.0
Regular Appropriations from MOF Table (2028-29 GAA)	0.0	0.0	0.0	19.0	19.0
TOTAL, ADJUSTED FTES	19.0	20.0	20.0	19.0	19.0
NUMBER OF 100% FEDERALLY FUNDED FTEs					
	0.0	0.0	0.0	0.0	0.0

2.C. Summary of Base Request by Object of Expense

8/14/2026 10:37:50AM

90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)**229 Ninth Court of Appeals District, Beaumont**

OBJECT OF EXPENSE	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
1001 SALARIES AND WAGES	\$2,386,684	\$2,717,662	\$3,110,792	\$2,932,133	\$2,932,133
1002 OTHER PERSONNEL COSTS	\$318,545	\$46,774	\$286,794	\$11,550	\$11,550
2001 PROFESSIONAL FEES AND SERVICES	\$0	\$2,490	\$3,000	\$0	\$0
2003 CONSUMABLE SUPPLIES	\$8,003	\$0	\$5,000	\$0	\$0
2009 OTHER OPERATING EXPENSE	\$67,179	\$38,564	\$103,216	\$51,367	\$51,367
OOE Total (Excluding Riders)	\$2,780,411	\$2,805,490	\$3,508,802	\$2,995,050	\$2,995,050
OOE Total (Riders)					
Grand Total	\$2,780,411	\$2,805,490	\$3,508,802	\$2,995,050	\$2,995,050

2.C.1. Operating Costs Detail ~ Base Request

Date: 8/14/2026

Time: 10:37:55AM

90th Regular Session, Agency Submission, Version 1
 Automated Budget and Evaluation System of Texas (ABEST)

Agency Code: 229 Agency: Ninth Court of Appeals District, Beaumont

BASE REQUEST STRATEGY: 1-1-1 Appellate Court Operations

Code	Type of Expense	Expended	Estimated	Budgeted	Requested	Requested
13	Furniture & Equipment (Expensed)	\$3,476	\$0	\$0	\$0	\$0
27	Membership Dues	3,984	0	3,984	3,984	3,984
39	Computer Equipment - Non Capital	15,059	0	0	0	0
54	Furnishings & Equip. - Controlled	8,460	0	0	0	0
64	SORM Assessment	3,182	328	3,182	3,182	3,182
73	Maintenance-Repair Computer Equip	1,295	0	0	2,824	2,824
166	Other Personnel Cost	0	0	54,673	0	0
187	1% salary benefits fee	16,470	16,470	18,529	18,529	18,529
195	Payroll Health Insurance Contrib.	8,656	8,656	9,738	9,738	9,738
Total, Operating Costs		\$60,582	\$25,454	\$90,106	\$38,257	\$38,257

2.D. Summary of Base Request Objective Outcomes
 90th Regular Session, Agency Submission, Version 1
 Automated Budget and Evaluation system of Texas (ABEST)

8/14/2026 10:37:50AM

229 Ninth Court of Appeals District, Beaumont					
<i>Goal/ Objective / Outcome</i>	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
1 Appellate Court Operations					
1 Appellate Court Operations					
KEY 1 Clearance Rate					
	91.00%	80.00%	85.00%	80.00%	75.00%
KEY 2 Percentage of Cases Under Submission for Less Than One Year					
	97.00%	100.00%	100.00%	100.00%	100.00%
KEY 3 Percentage of Cases Pending for Less Than Two Years					
	99.00%	100.00%	100.00%	100.00%	100.00%

2.E. Summary of Exceptional Items Request
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/14/2026
TIME : 10:37:50AM

Agency code: 229

Agency name: Ninth Court of Appeals District, Beaumont

Priority	Item	2028			2029			Biennium	
		GR and GR/GR Dedicated	All Funds	FTEs	GR and GR Dedicated	All Funds	FTEs	GR and GR Dedicated	All Funds
1	Restore 3% Budget Reduction	\$90,797	\$90,797	20.0	\$90,797	\$90,797	20.0	\$181,594	\$181,594
2	Recruitment of Additional FTEs	\$670,461	\$670,461	4.0	\$600,173	\$600,173	4.0	\$1,270,634	\$1,270,634
3	Judiciary Staff Salary Increase	\$83,912	\$83,912		\$86,429	\$86,429		\$170,341	\$170,341
Total, Exceptional Items Request		\$845,170	\$845,170	24.0	\$777,399	\$777,399	24.0	\$1,622,569	\$1,622,569
Method of Financing									
	General Revenue	\$845,170	\$845,170		\$777,399	\$777,399		\$1,622,569	\$1,622,569
	General Revenue - Dedicated								
	Federal Funds								
	Other Funds								
		\$845,170	\$845,170		\$777,399	\$777,399		\$1,622,569	\$1,622,569
Full Time Equivalent Positions				24.0				24.0	
Number of 100% Federally Funded FTEs				0.0				0.0	

2.F. Summary of Total Request by Strategy
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE : 8/14/2026
TIME : 10:37:51AM

Agency code: 229	Agency name: Ninth Court of Appeals District, Beaumont					
Goal/Objective/STRATEGY	Base 2028	Base 2029	Exceptional 2028	Exceptional 2029	Total Request 2028	Total Request 2029
1 Appellate Court Operations						
1 Appellate Court Operations						
1 APPELLATE COURT OPERATIONS	\$2,101,062	\$2,101,062	\$845,170	\$777,399	\$2,946,232	\$2,878,461
2 APPELLATE JUSTICE SALARIES	893,988	893,988	0	0	893,988	893,988
TOTAL, GOAL 1	\$2,995,050	\$2,995,050	\$845,170	\$777,399	\$3,840,220	\$3,772,449
TOTAL, AGENCY STRATEGY REQUEST	\$2,995,050	\$2,995,050	\$845,170	\$777,399	\$3,840,220	\$3,772,449
TOTAL, AGENCY RIDER APPROPRIATIONS REQUEST						
GRAND TOTAL, AGENCY REQUEST	\$2,995,050	\$2,995,050	\$845,170	\$777,399	\$3,840,220	\$3,772,449

2.F. Summary of Total Request by Strategy
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE : 8/14/2026
TIME : 10:37:51AM

Agency code: 229		Agency name: Ninth Court of Appeals District, Beaumont					
Goal/Objective/STRATEGY		Base 2028	Base 2029	Exceptional 2028	Exceptional 2029	Total Request 2028	Total Request 2029
General Revenue Funds:							
1	General Revenue Fund	\$2,868,450	\$2,868,450	\$845,170	\$777,399	\$3,713,620	\$3,645,849
		\$2,868,450	\$2,868,450	\$845,170	\$777,399	\$3,713,620	\$3,645,849
Other Funds:							
573	Judicial Fund	122,600	122,600	0	0	122,600	122,600
666	Appropriated Receipts	4,000	4,000	0	0	4,000	4,000
		\$126,600	\$126,600	\$0	\$0	\$126,600	\$126,600
TOTAL, METHOD OF FINANCING		\$2,995,050	\$2,995,050	\$845,170	\$777,399	\$3,840,220	\$3,772,449
FULL TIME EQUIVALENT POSITIONS		19.0	19.0	24.0	24.0	43.0	43.0

2.G. Summary of Total Request Objective Outcomes
 90th Regular Session, Agency Submission, Version 1
 Automated Budget and Evaluation system of Texas (ABEST)

Date : 8/14/2026
 Time: 10:37:51AM

Agency code: 229 Agency name: Ninth Court of Appeals District, Beaumont

Goal/ Objective / Outcome

		BL 2028	BL 2029	Excp 2028	Excp 2029	Total Request 2028	Total Request 2029
1	Appellate Court Operations						
1	Appellate Court Operations						
KEY	1 Clearance Rate						
		80.00%	75.00%	100.00%	100.00%	100.00%	100.00%
KEY	2 Percentage of Cases Under Submission for Less Than One Year						
		100.00%	100.00%	100.00%	100.00%	100.00%	100.00%
KEY	3 Percentage of Cases Pending for Less Than Two Years						
		100.00%	100.00%	100.00%	100.00%	100.00%	100.00%

229 Ninth Court of Appeals District, Beaumont

GOAL: 1 Appellate Court Operations
OBJECTIVE: 1 Appellate Court Operations
STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
Output Measures:						
1	Number of Civil Cases Disposed	240.00	254.00	296.00	305.00	315.00
2	Number of Criminal Cases Disposed	190.00	211.00	246.00	255.00	265.00
Explanatory/Input Measures:						
1	Number of Civil Cases Filed	243.00	344.00	378.00	416.00	458.00
2	Number of Criminal Cases Filed	233.00	235.00	259.00	285.00	314.00
3	Number of Cases Transferred in	1.00	0.00	0.00	0.00	0.00
4	Number of Cases Transferred out	2.00	37.00	0.00	0.00	0.00
Objects of Expense:						
1001	SALARIES AND WAGES	\$1,733,548	\$1,848,334	\$2,241,464	\$2,062,805	\$2,062,805
1002	OTHER PERSONNEL COSTS	\$318,545	\$35,224	\$275,244	\$0	\$0
2001	PROFESSIONAL FEES AND SERVICES	\$0	\$2,490	\$3,000	\$0	\$0
2003	CONSUMABLE SUPPLIES	\$8,003	\$0	\$5,000	\$0	\$0
2009	OTHER OPERATING EXPENSE	\$60,582	\$25,454	\$90,106	\$38,257	\$38,257
TOTAL, OBJECT OF EXPENSE		\$2,120,678	\$1,911,502	\$2,614,814	\$2,101,062	\$2,101,062
Method of Financing:						
1	General Revenue Fund	\$2,112,678	\$1,903,502	\$2,606,814	\$2,097,062	\$2,097,062

229 Ninth Court of Appeals District, Beaumont

GOAL: 1 Appellate Court Operations
OBJECTIVE: 1 Appellate Court Operations
STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
SUBTOTAL, MOF (GENERAL REVENUE FUNDS)		\$2,112,678	\$1,903,502	\$2,606,814	\$2,097,062	\$2,097,062
Method of Financing:						
666	Appropriated Receipts	\$8,000	\$8,000	\$8,000	\$4,000	\$4,000
SUBTOTAL, MOF (OTHER FUNDS)		\$8,000	\$8,000	\$8,000	\$4,000	\$4,000
TOTAL, METHOD OF FINANCE (INCLUDING RIDERS)					\$2,101,062	\$2,101,062
TOTAL, METHOD OF FINANCE (EXCLUDING RIDERS)		\$2,120,678	\$1,911,502	\$2,614,814	\$2,101,062	\$2,101,062
FULL TIME EQUIVALENT POSITIONS:		19.0	20.0	20.0	19.0	19.0

STRATEGY DESCRIPTION AND JUSTIFICATION:

The Ninth Court of Appeals was established by the 34th Texas Legislature on March 11, 1915. Our Court has intermediate appellate jurisdiction in civil cases when the judgment exceeds \$100 exclusive of cost and effective September 1, 1981 in criminal cases excluding those in which the death penalty has been assessed. Located in Beaumont, Texas, it is composed of the following ten counties: Hardin, Jasper, Jefferson, Liberty, Montgomery, Newton, Orange, Polk, San Jacinto and Tyler. Effective January 1, 2005 our Court became a four-justice court pursuant to H.B. 2261 and H.B. 3306, 78th Regular Session.

EXTERNAL/INTERNAL FACTORS IMPACTING STRATEGY:

229 Ninth Court of Appeals District, Beaumont

GOAL:	1	Appellate Court Operations	
OBJECTIVE:	1	Appellate Court Operations	Service Categories:
STRATEGY:	1	Appellate Court Operations	Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
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Courts of Appeals are by nature, constitutional components of the Judicial Branch of the government with highly specialized staffs. The primary factor which drives this strategy is the need to attract and retain highly trained and knowledgeable staff to maintain the Court's ability to dispose of cases in as effective and efficient manner as possible in order to meet the Legislature's performance measures and the expectations of Texas citizens. Effective January 1, 2005, our Court became a four-justice court pursuant to H.B. 2261 and H.B. 3306, 78th Regular Session.

EXPLANATION OF BIENNIAL CHANGE (includes Rider amounts):

<u>STRATEGY BIENNIAL TOTAL - ALL FUNDS</u>		<u>BIENNIAL CHANGE</u>	<u>EXPLANATION OF BIENNIAL CHANGE</u>	
<u>Base Spending (Est 2026 + Bud 2027)</u>	<u>Baseline Request (BL 2028 + BL 2029)</u>		<u>\$ Amount</u>	<u>Explanation(s) of Amount (must specify MOFs and FTEs)</u>
\$4,526,316	\$4,202,124	\$(324,192)	\$(181,593)	Three percent budget reduction in General Revenue-Related funds resulting in the loss of one FTE
			\$(142,599)	This amount was added to the General Revenue Base to budget for the attorney salary increases given in FY2026-2027
			\$(324,192)	Total of Explanation of Biennial Change

229 Ninth Court of Appeals District, Beaumont

GOAL:	1	Appellate Court Operations	
OBJECTIVE:	1	Appellate Court Operations	Service Categories:
STRATEGY:	2	Appellate Justice Salaries. Estimated and Nontransferable	Service: NA Income: NA Age: NA

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
Objects of Expense:						
1001	SALARIES AND WAGES	\$653,136	\$869,328	\$869,328	\$869,328	\$869,328
1002	OTHER PERSONNEL COSTS	\$0	\$11,550	\$11,550	\$11,550	\$11,550
2009	OTHER OPERATING EXPENSE	\$6,597	\$13,110	\$13,110	\$13,110	\$13,110
TOTAL, OBJECT OF EXPENSE		\$659,733	\$893,988	\$893,988	\$893,988	\$893,988
Method of Financing:						
1	General Revenue Fund	\$537,133	\$771,388	\$771,388	\$771,388	\$771,388
SUBTOTAL, MOF (GENERAL REVENUE FUNDS)		\$537,133	\$771,388	\$771,388	\$771,388	\$771,388
Method of Financing:						
573	Judicial Fund	\$122,600	\$122,600	\$122,600	\$122,600	\$122,600
SUBTOTAL, MOF (OTHER FUNDS)		\$122,600	\$122,600	\$122,600	\$122,600	\$122,600
TOTAL, METHOD OF FINANCE (INCLUDING RIDERS)					\$893,988	\$893,988
TOTAL, METHOD OF FINANCE (EXCLUDING RIDERS)		\$659,733	\$893,988	\$893,988	\$893,988	\$893,988
FULL TIME EQUIVALENT POSITIONS:						

229 Ninth Court of Appeals District, Beaumont

GOAL:	1	Appellate Court Operations	
OBJECTIVE:	1	Appellate Court Operations	Service Categories:
STRATEGY:	2	Appellate Justice Salaries. Estimated and Nontransferable	Service: NA Income: NA Age: NA

CODE	DESCRIPTION	Exp 2025	Est 2026	Bud 2027	BL 2028	BL 2029
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STRATEGY DESCRIPTION AND JUSTIFICATION:

EXTERNAL/INTERNAL FACTORS IMPACTING STRATEGY:

EXPLANATION OF BIENNIAL CHANGE (includes Rider amounts):

<u>STRATEGY BIENNIAL TOTAL - ALL FUNDS</u>		<u>BIENNIAL CHANGE</u>	<u>EXPLANATION OF BIENNIAL CHANGE</u>	
<u>Base Spending (Est 2026 + Bud 2027)</u>	<u>Baseline Request (BL 2028 + BL 2029)</u>		<u>\$ Amount</u>	<u>Explanation(s) of Amount (must specify MOFs and FTEs)</u>
\$1,787,976	\$1,787,976	\$0		
			\$0	Total of Explanation of Biennial Change

SUMMARY TOTALS:

OBJECTS OF EXPENSE:	\$2,780,411	\$2,805,490	\$3,508,802	\$2,995,050	\$2,995,050
METHODS OF FINANCE (INCLUDING RIDERS):				\$2,995,050	\$2,995,050
METHODS OF FINANCE (EXCLUDING RIDERS):	\$2,780,411	\$2,805,490	\$3,508,802	\$2,995,050	\$2,995,050
FULL TIME EQUIVALENT POSITIONS:	19.0	20.0	20.0	19.0	19.0

3.B. Rider Revisions and Additions Request

Agency Code: 2XX	Agency Name: Court of Appeals, District	Prepared By:	Date:	Request Level: Baseline
Current Rider Number	Page Number in 2026–2027 GAA	Proposed Rider Language		

2, 3, 4, 6,
7, 8

No changes recommended for Riders 2, 3, 4, 6, 7, and 8

5

IV-43

Sec. 5. Interagency Contracts for Assigned Judges for Appellate Courts. Out of funds appropriated in this Article to Strategies A.1.1., Appellate Court Operations, the Supreme Court of Texas, the Court of Criminal Appeals, or any of the 15 Courts of Appeals may enter into a contract with the Office of the Comptroller for fiscal years ~~2026~~2028 and ~~2027~~2029, for the purpose of reimbursing the Comptroller for amounts expended for judges assigned under Chapter 74, Government Code to hear cases of the appellate courts. It is the intent of the Legislature that any amounts reimbursed under this contract for judges assigned to the appellate courts are in addition to amounts appropriated for the use of assigned judges in Strategy A.1.3. Visiting Judges – Appellate in the Judiciary Section, Comptroller’s Department.

Adjusting the years in the rider for the 2028-2029 biennium.

9

IV-44

Sec. 9. Unexpended Balance Authority. Any unexpended and unobligated balances remaining in non-estimated strategies at the Supreme Court of Texas, Court of Criminal Appeals, 15 Courts of Appeals, Office of Court Administration, Office of Capital and Forensic Writs, Office of the State Prosecuting Attorney, State Commission on Judicial Conduct, and State Law Library as of August 31, ~~2026~~2028, are appropriated to the respective court or agency for the fiscal year beginning September 1, ~~2026~~2028, for the same purpose.

Updating the rider to adjust the years for the 2028-2029 biennium.

**3.B. Rider Revisions and Additions Request
(continued)**

4.A. Exceptional Item Request Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/14/2026
TIME: 10:37:55AM

Agency code: 229 Agency name: Ninth Court of Appeals District, Beaumont

CODE	DESCRIPTION	Excp 2028	Excp 2029
	Item Name: Maintain Funding at FY2027 Budgeted Levels		
	Item Priority: 1		
	IT Component: No		
	Anticipated Out-year Costs: Yes		
	Involve Contracts > \$50,000: No		
	Includes Funding for the Following Strategy or Strategies: 01-01-01 Appellate Court Operations		
OBJECTS OF EXPENSE:			
1001	SALARIES AND WAGES	90,797	90,797
	TOTAL, OBJECT OF EXPENSE	\$90,797	\$90,797
METHOD OF FINANCING:			
1	General Revenue Fund	90,797	90,797
	TOTAL, METHOD OF FINANCING	\$90,797	\$90,797
FULL-TIME EQUIVALENT POSITIONS (FTE):		20.00	20.00

DESCRIPTION / JUSTIFICATION:

To address the highly negative and disproportionate impact of the required 3% reduction on the courts' funding, especially in light of the substantial increase in new case filings in Fiscal Year '26, the courts of appeals respectfully submit Exceptional Item #1 requesting the restoration of the 3% budget reduction so that their baseline funding will be the Fiscal Year 2027 budgeted levels. The Ninth Court of Appeals therefore respectfully requests a restoration to General Revenue funding in the amount of \$181,593.

EXTERNAL/INTERNAL FACTORS:

These funds are not controlled by the agency.

PCLS TRACKING KEY:

DESCRIPTION OF ANTICIPATED OUT-YEAR COSTS :

Anticipated out-year costs include salaries and employee related costs.

4.A. Exceptional Item Request Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/14/2026
TIME: 10:37:55AM

Agency code: 229 Agency name: Ninth Court of Appeals District, Beaumont

CODE	DESCRIPTION	Excp 2028		Excp 2029
ESTIMATED ANTICIPATED OUT-YEAR COSTS FOR ITEM:				
		2030	2031	2032
OUT-YEAR ALL FUNDS:		\$90,797	\$90,797	\$90,797
OUT-YEAR GR ONLY COSTS FOR ITEM:				
1	General Revenue Fund	\$90,797	\$90,797	\$90,797
TOTAL OUT-YEAR GR ONLY:		\$90,797	\$90,797	\$90,797

4.A. Exceptional Item Request Schedule
 90th Regular Session, Agency Submission, Version 1
 Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/14/2026
 TIME: 10:37:55AM

Agency code: 229 Agency name: Ninth Court of Appeals District, Beaumont

CODE	DESCRIPTION	Excp 2028	Excp 2029
Item Name: Recruitment of Additional FTEs Item Priority: 2 IT Component: Yes Anticipated Out-year Costs: Yes Involve Contracts > \$50,000: No Includes Funding for the Following Strategy or Strategies: 01-01-01 Appellate Court Operations			
OBJECTS OF EXPENSE:			
1001	SALARIES AND WAGES	568,000	568,000
1002	OTHER PERSONNEL COSTS	960	960
2001	PROFESSIONAL FEES AND SERVICES	4,000	4,000
2003	CONSUMABLE SUPPLIES	2,000	2,000
2009	OTHER OPERATING EXPENSE	95,501	25,213
TOTAL, OBJECT OF EXPENSE		\$670,461	\$600,173
METHOD OF FINANCING:			
1	General Revenue Fund	670,461	600,173
TOTAL, METHOD OF FINANCING		\$670,461	\$600,173
FULL-TIME EQUIVALENT POSITIONS (FTE):		4.00	4.00

DESCRIPTION / JUSTIFICATION:

Due to the substantial increase in new case filings that the courts of appeals are experiencing in FY '26, and which are expected to continue for the foreseeable future, and based on the template of same-size courts above, the Ninth Court of Appeals respectfully submits its Exceptional Item # 2 in which it requests funding for four additional full time staff attorneys.

These additional staff attorneys are necessary because the Ninth Court of Appeals has experienced a 20% increase in new case filings from FY '25 to FY '26. And a 39% increase from FY '24 to FY '26. These increases are beyond the current capacity of the Ninth Court of Appeals to handle and comply with the Legislative mandates to give accelerated and preferential treatment to certain appeals (such as parental-termination and juvenile-certification appeals under the Family Code, mental-health appeals under the Health and Safety Code, and interlocutory appeals under the Civil Practice and Remedies Code) and also comply with the legislatively mandated Clearance Rate requirement.

The total anticipated expense for these requested FTEs in Biennium 2028-29 for the Ninth Court of Appeals is broken down as follows:

Salaries and wages: \$568,000
 Other Personnel Costs: \$960
 Consumables: \$2000
 Other Operating Expenses: \$99,501

4.A. Exceptional Item Request Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/14/2026
TIME: 10:37:55AM

Agency code: 229 Agency name: Ninth Court of Appeals District, Beaumont

CODE	DESCRIPTION	Excp 2028	Excp 2029
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EXTERNAL/INTERNAL FACTORS:

N/A

PCLS TRACKING KEY:

N/A

DESCRIPTION OF IT COMPONENT INCLUDED IN EXCEPTIONAL ITEM:

Computer acquisition for four full-time equivalent employees with licensing.

IS THIS IT COMPONENT RELATED TO A NEW OR CURRENT PROJECT?

NEW

STATUS:

Computer acquisition for four full-time equivalent employees with licensing.

OUTCOMES:

To be determined.

OUTPUTS:

Computer acquisition for four full-time equivalent employees with licensing.

TYPE OF PROJECT

Acquisition and Refresh of Hardware and Software

ALTERNATIVE ANALYSIS

To be determined.

ESTIMATED IT COST

2026	2027	2028	2029	2030	2031	2032	Total Over Life of Project
\$0	\$0	\$29,224	\$2,824	\$2,824	\$2,824	\$2,824	\$31,768

SCALABILITY

2026	2027	2028	2029	2030	2031	2032	Total Over Life of Project
\$0	\$0	\$0	\$0	\$0	\$0	\$0	\$0

4.A. Exceptional Item Request Schedule
 90th Regular Session, Agency Submission, Version 1
 Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/14/2026
 TIME: 10:37:55AM

Agency code: 229 Agency name: Ninth Court of Appeals District, Beaumont

CODE	DESCRIPTION						Excp 2028	Excp 2029
FTE								
	2026	2027	2028	2029	2030	2031	2032	
	0.0	0.0	4.0	4.0	4.0	4.0	4.0	

DESCRIPTION OF ANTICIPATED OUT-YEAR COSTS :

Anticipated out-year costs include salaries and employee related costs.

ESTIMATED ANTICIPATED OUT-YEAR COSTS FOR ITEM:

		2030	2031	2032
OUT-YEAR ALL FUNDS:		\$601,133	\$627,533	\$602,093
OUT-YEAR GR ONLY COSTS FOR ITEM:				
1	General Revenue Fund	\$601,133	\$627,533	\$602,093
TOTAL OUT-YEAR GR ONLY:		\$601,133	\$627,533	\$602,093

4.A. Exceptional Item Request Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/14/2026
TIME: 10:37:55AM

Agency code: 229 Agency name: Ninth Court of Appeals District, Beaumont

CODE	DESCRIPTION		Excp 2028	Excp 2029
	Item Name:	Judiciary Request for Increase in Staff Salaries		
	Item Priority:	3		
	IT Component:	No		
	Anticipated Out-year Costs:	Yes		
	Involve Contracts > \$50,000:	No		
	Includes Funding for the Following Strategy or Strategies:	01-01-01 Appellate Court Operations		
OBJECTS OF EXPENSE:				
1001	SALARIES AND WAGES		82,672	85,152
2009	OTHER OPERATING EXPENSE		1,240	1,277
	TOTAL, OBJECT OF EXPENSE		\$83,912	\$86,429
METHOD OF FINANCING:				
1	General Revenue Fund		83,912	86,429
	TOTAL, METHOD OF FINANCING		\$83,912	\$86,429

DESCRIPTION / JUSTIFICATION:

Recruiting and retaining excellent judicial-branch staff is essential to the fair and efficient administration of justice in Texas. The rising cost of living combined with the draw of more lucrative employment at other government agencies and the private sector continue to create staffing challenges for the courts. A 3% annual increase in staff pay throughout the Article IV courts and agencies would help maintain the judicial branch's position in the competitive market for talented, qualified, and experienced lawyers and staff. In conjunction with the rest of the judicial branch, the Ninth Court of Appeals requests a 3% increase in staff salaries in Fiscal Year 28 and an additional 3% increase in Fiscal Year 29.

EXTERNAL/INTERNAL FACTORS:

N/A

PCLS TRACKING KEY:

4.A. Exceptional Item Request Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/14/2026
TIME: 10:37:55AM

Agency code: 229

Agency name: Ninth Court of Appeals District, Beaumont

CODE	DESCRIPTION	Excp 2028		Excp 2029
DESCRIPTION OF ANTICIPATED OUT-YEAR COSTS :				
Anticipated out-year costs include salaries and employee related costs.				
ESTIMATED ANTICIPATED OUT-YEAR COSTS FOR ITEM:				
		2030	2031	2032
OUT-YEAR ALL FUNDS:		\$86,429	\$86,429	\$86,429
OUT-YEAR GR ONLY COSTS FOR ITEM:				
1	General Revenue Fund	\$86,429	\$86,429	\$86,429
TOTAL OUT-YEAR GR ONLY:		\$86,429	\$86,429	\$86,429

Agency code: 229 Agency name: Ninth Court of Appeals District, Beaumont

Code	Description	Excp 2028	Excp 2029
Item Name:		Maintain Funding at FY2027 Budgeted Levels	
Allocation to Strategy:		1-1-1	Appellate Court Operations
STRATEGY IMPACT ON OUTCOME MEASURES:			
<u>1</u>	Clearance Rate	80.00%	75.00%
<u>2</u>	Percentage of Cases Under Submission for Less Than One Year	100.00%	100.00%
<u>3</u>	Percentage of Cases Pending for Less Than Two Years	100.00%	100.00%
OUTPUT MEASURES:			
<u>1</u>	Number of Civil Cases Disposed	24.00	24.00
<u>2</u>	Number of Criminal Cases Disposed	16.00	16.00
OBJECTS OF EXPENSE:			
1001	SALARIES AND WAGES	90,797	90,797
TOTAL, OBJECT OF EXPENSE		\$90,797	\$90,797
METHOD OF FINANCING:			
1	General Revenue Fund	90,797	90,797
TOTAL, METHOD OF FINANCING		\$90,797	\$90,797
FULL-TIME EQUIVALENT POSITIONS (FTE):		20.0	20.0

4.B. Exceptional Items Strategy Allocation Schedule

90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/14/2026

TIME: 10:37:56AM

Agency code:	229	Agency name:	Ninth Court of Appeals District, Beaumont		
Code	Description		Excp 2028	Excp 2029	
Item Name:	Recruitment of Additional FTEs				
Allocation to Strategy:	1-1-1	Appellate Court Operations			
STRATEGY IMPACT ON OUTCOME MEASURES:					
1	Clearance Rate		100.00%	100.00%	
2	Percentage of Cases Under Submission for Less Than One Year		100.00%	100.00%	
3	Percentage of Cases Pending for Less Than Two Years		100.00%	100.00%	
OUTPUT MEASURES:					
1	Number of Civil Cases Disposed		96.00	120.00	
2	Number of Criminal Cases Disposed		64.00	80.00	
EXPLANATORY/INPUT MEASURES:					
1	Number of Civil Cases Filed		0.00	0.00	
2	Number of Criminal Cases Filed		0.00	0.00	
3	Number of Cases Transferred in		0.00	0.00	
4	Number of Cases Transferred out		0.00	0.00	
OBJECTS OF EXPENSE:					
1001	SALARIES AND WAGES		568,000	568,000	
1002	OTHER PERSONNEL COSTS		960	960	
2001	PROFESSIONAL FEES AND SERVICES		4,000	4,000	
2003	CONSUMABLE SUPPLIES		2,000	2,000	
2009	OTHER OPERATING EXPENSE		95,501	25,213	
TOTAL, OBJECT OF EXPENSE			\$670,461	\$600,173	
METHOD OF FINANCING:					
1	General Revenue Fund		670,461	600,173	
TOTAL, METHOD OF FINANCING			\$670,461	\$600,173	
FULL-TIME EQUIVALENT POSITIONS (FTE):			4.0	4.0	

Agency code: 229		Agency name: Ninth Court of Appeals District, Beaumont	
Code	Description	Excp 2028	Excp 2029
Item Name:		Judiciary Request for Increase in Staff Salaries	
Allocation to Strategy:		1-1-1	Appellate Court Operations
OBJECTS OF EXPENSE:			
1001	SALARIES AND WAGES	82,672	85,152
2009	OTHER OPERATING EXPENSE	1,240	1,277
TOTAL, OBJECT OF EXPENSE		\$83,912	\$86,429
METHOD OF FINANCING:			
1	General Revenue Fund	83,912	86,429
TOTAL, METHOD OF FINANCING		\$83,912	\$86,429

4.C. Exceptional Items Strategy Request
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/14/2026
TIME: 10:37:56AM

Agency Code: **229** Agency name: **Ninth Court of Appeals District, Beaumont**

GOAL: 1 Appellate Court Operations

OBJECTIVE: 1 Appellate Court Operations

STRATEGY: 1 Appellate Court Operations

Service Categories:

Service: 01 Income: A.2 Age: B.3

CODE	DESCRIPTION	Excp 2028	Excp 2029
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STRATEGY IMPACT ON OUTCOME MEASURES:

<u>1</u> Clearance Rate	100.00 %	100.00 %
<u>2</u> Percentage of Cases Under Submission for Less Than One Year	100.00 %	100.00 %
<u>3</u> Percentage of Cases Pending for Less Than Two Years	100.00 %	100.00 %

OUTPUT MEASURES:

<u>1</u> Number of Civil Cases Disposed	416.00	458.00
<u>2</u> Number of Criminal Cases Disposed	285.00	314.00

EXPLANATORY/INPUT MEASURES:

<u>1</u> Number of Civil Cases Filed	416.00	458.00
<u>2</u> Number of Criminal Cases Filed	285.00	314.00

OBJECTS OF EXPENSE:

1001 SALARIES AND WAGES	741,469	743,949
1002 OTHER PERSONNEL COSTS	960	960
2001 PROFESSIONAL FEES AND SERVICES	4,000	4,000
2003 CONSUMABLE SUPPLIES	2,000	2,000
2009 OTHER OPERATING EXPENSE	96,741	26,490
Total, Objects of Expense	\$845,170	\$777,399

METHOD OF FINANCING:

1 General Revenue Fund	845,170	777,399
Total, Method of Finance	\$845,170	\$777,399

FULL-TIME EQUIVALENT POSITIONS (FTE):	24.0	24.0
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DATE: 8/14/2026
TIME: 10:37:56AM

Service: 01 Income: A.2 Age: B.3

Exp 2029

General Revenue (GR) & General Revenue Dedicated (GR-D) Baseline

90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/14/2026

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Agency code: 229

Agency name: Ninth Court of Appeals District, Beaumont

GR Baseline Request Limit = \$5,871,499

GR-D Baseline Request Limit = \$0

Strategy/Strategy Option/Rider										Page #
2028 Funds				2029 Funds				Biennial Cumulative GR	Biennial Cumulative Ded	
FTEs	Total	GR	Ded	FTEs	Total	GR	Ded			
Strategy: 1 - 1 - 1	Appellate Court Operations									
19.0	2,101,062	2,097,062	0	19.0	2,101,062	2,097,062	0	4,194,124	0	
Strategy: 1 - 1 - 2	Appellate Justice Salaries. Estimated and Nontransferable									
0.0	893,988	771,388	0	0.0	893,988	771,388	0	5,736,900	0	
19.0				19.0				*****GR Baseline Request Limit=\$5,871,499*****		
Excp Item: 1	Maintain Funding at FY2027 Budgeted Levels									
20.0	90,797	90,797	0	20.0	90,797	90,797	0	5,918,494	0	
Strategy Detail for Excp Item: 1										
Strategy: 1 - 1 - 1	Appellate Court Operations									
20.0	90,797	90,797	0	20.0	90,797	90,797	0			
Excp Item: 2	Recruitment of Additional FTEs									
4.0	670,461	670,461	0	4.0	600,173	600,173	0	7,189,128	0	
Strategy Detail for Excp Item: 2										
Strategy: 1 - 1 - 1	Appellate Court Operations									
4.0	670,461	670,461	0	4.0	600,173	600,173	0			
Excp Item: 3	Judiciary Request for Increase in Staff Salaries									
0.0	83,912	83,912	0	0.0	86,429	86,429	0	7,359,469	0	
Strategy Detail for Excp Item: 3										
Strategy: 1 - 1 - 1	Appellate Court Operations									
0.0	83,912	83,912	0	0.0	86,429	86,429	0			
43.0	\$3,840,220	\$3,713,620	\$0	43.0	\$3,772,449	\$3,645,849	0			

Agency Code: 229 Agency: Ninth Court of Appeals District, Beaumont

COMPARISON TO STATEWIDE HUB PROCUREMENT GOALS

A. Fiscal Year - HUB Expenditure Information

Statewide HUB Goals	Procurement Category	% Goal	HUB Expenditures FY 2024			Total Expenditures FY 2024		% Goal	HUB Expenditures FY 2025			Total Expenditures FY 2025
			% Actual	Diff	Actual \$				% Actual	Diff	Actual \$	
21.1%	Commodities	21.1 %	85.3%	64.2%	\$3,754	\$4,402		21.1 %	73.8%	52.7%	\$1,486	\$2,013
	Total Expenditures		85.3%		\$3,754	\$4,402			73.8%		\$1,486	\$2,013

B. Assessment of Attainment of HUB Procurement Goals

Attainment:

The Ninth Court of Appeals exceeded \$3,754 of \$4,402, or 85.28%, of the applicable agency HUB procurement goals in commodity purchasing in fiscal year 2024 and \$1,486 of \$2,013, or 73.82%, in fiscal year 2025.

Applicability:

The Heavy Construction, Building Construction, Special Trade Construction, Professional Services, and Other Services categories were not applicable to the court's operations in either FY 2024 or FY 2025 because the court did not have any strategies related to construction or any need for professional services.

Factors Affecting Attainment:

Approximately 98% of the court's appropriations is expended on salaries and personnel costs. Sole-source purchases, including highly specialized legal publications purchased directly from the publishers, comprise a large portion of the court's remaining expenditures. Additionally, the Office of Court Administration performs most of the computer-related purchases for the court. But overall, due to the small size of the court and the nature of its function (judicial services), the court does not make a large amount of purchases during any given fiscal year, and many of the purchases made by the court are small spot purchases using time-efficient, noncompetitive procedures. Therefore, the opportunities for the court to make HUB purchases are limited.

C. Good-Faith Efforts to Increase HUB Participation

Outreach Efforts and Mentor-Protégé Programs:

Whenever possible and feasible, the court's purchases are carried out through TXSmartBuy, WorkQuest, TCI, and other set-aside contractors, as required by the Comptroller. The court makes efforts to identify HUB vendors selling through TXSmartBuy.

HUB Program Staffing:

Due to the small size of the court (20 authorized FTEs), the court is unable to dedicate full-time staffing to increasing participation of HUBs. The court's accountant, who performs most purchasing activities for the court, makes a good-faith effort to identify and consider HUB vendors when making purchasing decisions.

6.A. Historically Underutilized Business Supporting Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

Date: **8/14/2026**
Time: **10:37:57AM**

Agency Code: **229** Agency: **Ninth Court of Appeals District, Beaumont**

Current and Future Good-Faith Efforts:

The Court supports the HUB procurement program and will continue to make a good faith effort to meet HUB goals by giving HUB vendors preference for purchases when possible.

6.E. Estimated Revenue Collections Supporting Schedule
90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

Agency Code: **229** Agency name: **Ninth Court of Appeals District, Beaumont**

FUND/ACCOUNT		Act 2025	Exp 2026	Est 2027	Est 2028	Est 2029
<u>1</u>	General Revenue Fund					
	Beginning Balance (Unencumbered):	\$8,000	\$8,000	\$8,000	\$4,000	\$4,000
	Estimated Revenue:					
Ending Fund/Account Balance		\$8,000	\$8,000	\$8,000	\$4,000	\$4,000

REVENUE ASSUMPTIONS:

Revenues are based on historical collections. Collections have declined over the years due to opinions being available online on the agency website. These budgeted amounts should be reduced in future years.

CONTACT PERSON:

Carly Latiolais

6.H. Estimated Total of Agency Funds Outside the GAA

90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/14/2026
TIME : 10:37:57AM

Agency code: 229

Agency name: Ninth Court of Appeals District, Beaumont

Fund Name	2028-2029 Outside GAA Pattern Total	Estimated Beginning Balance in 2026	FY 2026 Revenue	FY 2027 Revenue	FY 2026 - 2027 Total	Estimated Beginning Balance in 2028	FY 2028 Revenue	FY 2029 Revenue	FY 2028 - 2029 Total
LOCAL-CHAPTER 22	114,000	45,256	20,404	20,404	86,064	57,000	28,500	28,500	114,000
Total Sources:	\$114,000	\$45,256	\$20,404	\$20,404	\$86,064	\$57,000	\$28,500	\$28,500	\$114,000

6.H. Estimated Total of Agency Funds Outside the GAA

90th Regular Session, Agency Submission, Version 1
Automated Budget and Evaluation System of Texas (ABEST)

DATE: 8/14/2026
TIME : 10:37:57AM

Agency code: 229

Agency name: Ninth Court of Appeals District, Beaumont

Fund Name	Constitutional or Statutory Creation and Use of Funds	Method of Calculation and Revenue Assumption	FY 2028 - 2029 Total
LOCAL-CHAPTER 22	Texas Gov't Code Ch. 22.229	The county commissioners court for each county within the Ninth Appellate District is required to set a court fee of \$5 for each civil suit filed in district or county court. Any difference between FY 26-27 and the Estimated Beginning Balance in FY 2028 is due to continued funding of appellate court operations, security expenses, increasing travel expenses, additional costs for assigned judges, and inflation.	\$114,000